

CONDITIONS OF CARRIAGE

ROAD LINX TRANSPORT PTY LTD ACN 666 887 903 AS TRUSTEE FOR GND SERVICES ABN 25 387 822 327 (**Road Linx, we, us, our**)

These Conditions of Carriage (**Conditions**) apply to all Services supplied by Road Linx to any person who requests or receives those Services (**Customer, you, your**). Please read these Conditions carefully. They affect your rights, and limit and exclude our liability. If you have any questions, contact us before making a Booking.

1. DEFINITIONS AND INTERPRETATION

1.1. In these Conditions, unless the context requires otherwise, the following definitions apply:

Agreement means these Conditions together with each Booking accepted by us.

Booking means a request for Services made in accordance with clause 3 (Bookings and Instructions).

Charges means the fees, rates and surcharges payable for the Services, determined in accordance with clause 7 (Charges and Payment).

Conditions means these Conditions of Carriage, as amended from time to time in accordance with clause 2.6.

Customer, you or your means the person named in, or who submits, a Booking, and includes that person's officers, employees, agents, consignors and consignees.

Dangerous Goods has the meaning given in clause 10.1.

Default has the meaning given in clause 7.6.

Delivery Address means the address, or other place, for delivery of the Goods notified to us by the Customer.

Force Majeure Event has the meaning given in clause 16.2.

Goods means any goods, property or items the Customer asks us to carry, handle or store.

GST has the meaning given in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth).

Loss has the meaning given in clause 11.3.

Personnel means our employees, officers, contractors and Sub-contractors (and their employees).

PPSA means the *Personal Property Securities Act 2009* (Cth).

Related Body Corporate has the meaning given in the *Corporations Act 2001* (Cth).

Road Linx, we, us or our means ROAD LINX TRANSPORT PTY LTD ACN 666 887 903 AS TRUSTEE FOR GND SERVICES ABN 25 387 822 327 and includes our Related Bodies Corporate, officers, employees, agents and Sub-contractors.

Services means the carriage, storage and related services we agree to supply to the Customer.

Sub-contractor means any person we engage to perform all or part of the Services.

1.2. In these Conditions, unless the context requires otherwise:

- (a) the singular includes the plural and vice versa;
- (b) a reference to a person includes a body corporate, partnership, trust and any other legal entity;
- (c) a reference to legislation includes that legislation as amended, re-enacted or replaced, and any subordinate legislation made under it;
- (d) "including" and similar expressions are not words of limitation;
- (e) headings are for convenience only and do not affect interpretation;
- (f) a reference to a party includes that party's permitted successors and assigns; and
- (g) all amounts are in Australian dollars and are exclusive of GST unless stated otherwise.

2. APPLICATION AND ACCEPTANCE OF THESE CONDITIONS

- 2.1. We supply the Services subject to these Conditions, which apply to, and form part of, every Booking we accept, whether the Booking is made by email, through our online booking portal, or by any other means we agree to accept.
- 2.2. By making a Booking, or otherwise requesting or accepting the Services, the Customer accepts and agrees to be bound by these Conditions on its own behalf and on behalf of its officers, employees, agents, consignors and consignees.
- 2.3. These Conditions apply from the date they are first provided to the Customer (including with a credit application) and continue to apply to every subsequent Booking (whether or not we give the Customer a further copy) until replaced or varied under clause 2.6.
- 2.4. If the Customer's own terms and conditions purport to apply to the Services, those terms do not apply to the Services, and to the extent of any inconsistency between the Customer's terms and these Conditions, these Conditions prevail.
- 2.5. We may accept or decline to provide the Services to any person, for any reason, and are not obliged to give reasons for declining to do so.
- 2.6. A variation to these Conditions is only effective if it is agreed in writing and signed by one of our authorised officers.

3. BOOKINGS AND INSTRUCTIONS

- 3.1. The Customer may request Services by email or via our online booking portal, or by any other means we notify to the Customer from time to time.
- 3.2. Each Booking is an offer by the Customer to engage us on these Conditions, which we may accept, decline, or accept subject to changes we notify to the Customer.

3.3. The Customer is responsible for the accuracy and completeness of all information given in or with a Booking (including the description, quantity, weight, dimensions and nature of the Goods, and the collection address and Delivery Address), and we are entitled to rely on that information without independent verification.

3.4. A person who submits a Booking using the Customer's account, portal login or email address is taken to have the Customer's authority to do so, and the Customer is bound by that Booking accordingly.

4. NATURE OF SERVICES AND SUB-CONTRACTING

4.1. We are a private carrier. We are not a common carrier, and we do not accept, and expressly exclude, any liability as a common carrier.

4.2. We may perform the Services ourselves (including using our own employees and vehicles) or engage one or more Sub-contractors to perform all or part of the Services, on any terms we consider appropriate, and the Customer authorises us to do so as the Customer's agent.

4.3. Where we engage a Sub-contractor, the Customer is bound by the terms on which that Sub-contractor agrees to perform the relevant part of the Services, and has no claim against us arising out of our decision to engage that Sub-contractor or the terms of that engagement.

4.4. We are entitled to retain, for our own benefit and without accounting to the Customer, any difference between the Charges paid by the Customer and the amount we pay a Sub-contractor for the same Services.

5. CARRIAGE, TRANSIT TIMES AND DELIVERY

5.1. The Goods are taken to be in our care, custody and control once they are loaded onto a vehicle at the collection address, and remain so until delivered in accordance with this clause 5.

5.2. We may determine, in our discretion, the route, method, vehicle and procedure used to perform the Services.

5.3. We will use reasonable endeavours to perform the Services, and to collect and deliver the Goods, within any timeframe requested by, or agreed with, the Customer, but all timeframes are estimates only, time is not of the essence, and we will complete the Services as soon as is reasonably practicable in the circumstances. We do not guarantee any transit or delivery time.

5.4. We are taken to have delivered the Goods once they are delivered to the Delivery Address, or to any other address or person the Customer instructs. Labour to load or unload the vehicle is the responsibility of, and at the cost of, the Customer or its consignee.

6. FAILED DELIVERY

6.1. If the Delivery Address is unattended, access to it is refused, or the Customer or its consignee otherwise fails to take delivery of the Goods, we may, at the Customer's cost and in our discretion:

- (a) attempt redelivery;
- (b) store the Goods, whether at our premises or a third party's premises;
- (c) return the Goods to the Customer at the collection address; or
- (d) deal with the Goods under clause 9 (Uncollected or Abandoned Goods), and any of these actions constitutes delivery for the purposes of these Conditions.

6.2. We may charge the Customer our then-current rates for redelivery, storage and any other costs we incur as a result of a failed delivery.

7. CHARGES AND PAYMENT

7.1. The Customer must pay our Charges for the Services, together with any GST payable on those Charges.

7.2. Charges may include a fuel surcharge and any other surcharge we notify to the Customer, and are subject to increase, with or without notice, to reflect increases in our costs (including labour, fuel, tolls, insurance, government charges, or the cost of handling Dangerous Goods) or costs we incur as a result of a failed delivery, a delay in loading or unloading not caused by us, or charges passed on by a Sub-contractor.

7.3. Any quotation or indicative charge we give the Customer is an estimate only. The Charges payable are those we determine prior to, or on completion of, the Services.

7.4. We may require payment of all or part of the Charges before we perform the Services.

7.5. Unless we agree otherwise in writing, the Customer must pay each invoice within 7 days of the date of the invoice.

7.6. If the Customer fails to pay any amount when due (Default):

- (a) all amounts otherwise not yet due for payment become immediately due and payable;
- (b) we may suspend, or refuse to provide, further Services until payment is made in full;
- (c) interest accrues daily on the overdue amount at the greater of 2% of the overdue balance or \$10, per invoice period, until the overdue amount is paid in full; and
- (d) the Customer must pay our reasonable costs (including legal costs on a solicitor/own client basis) of recovering the overdue amount.

7.7. We may apply any payment received from the Customer against any amount owing by the Customer to us, in any order we choose, regardless of any description or notation on the payment or an accompanying remittance.

7.8. The Customer must pay all Charges (including any demurrage, detention or waiting time charges) in full when due, without any deduction, set-off or counterclaim, whether or not the Customer disputes any amount owing, or has made or intends to make a claim against us under clause 12 (Claims). This clause does not affect the Customer's right to pursue a valid claim separately.

8. LIEN AND SECURITY INTEREST

- 8.1. We have a general lien over all Goods in our possession, custody or control, to secure all amounts owing to us by the Customer, whether in respect of those Goods or any other Services.
- 8.2. If the Customer is in Default, we may, without further notice, retain the Goods, and may open, inspect and sell any of the Goods and apply the proceeds towards the amount owing to us (and our reasonable costs of exercising this right), accounting to the Customer for any surplus.
- 8.3. These Conditions create a security interest (as defined in the PPSA) in the Goods in our favour, to secure the Customer's obligations to us. The Customer must promptly do anything we reasonably require to enable us to register, perfect or protect that security interest. To the extent permitted by the PPSA, the Customer waives its right to receive any notice or verification statement under the PPSA, and agrees that sections 96, 118, 121(4), 125, 130, 132(3)(d), 132(4), 135, 142 and 143 of the PPSA do not apply to these Conditions.

9. UNCOLLECTED OR ABANDONED GOODS

- 9.1. If the Customer or its consignee fails to collect, or take delivery of, Goods within 14 days after we notify the Customer that the Goods are available for collection or delivery, we may treat the Goods as uncollected.
- 9.2. Before selling or disposing of Goods under this clause 9, we will give the Customer at least 14 days' written notice, sent to the last address or email we hold for the Customer, of our intention to do so.
- 9.3. If the Customer does not collect the Goods, or make other arrangements satisfactory to us, within that notice period, we may sell, destroy or otherwise dispose of the Goods in any manner we consider appropriate, without further reference to the Customer.
- 9.4. We may deduct from the proceeds of sale all storage, handling and disposal costs, and any amount owing by the Customer to us, and will account to the Customer for any surplus. If the proceeds are insufficient to cover those amounts, the Customer remains liable to us for the shortfall.
- 9.5. This clause 9 is in addition to, and does not limit, our rights under clause 8 (Lien and Security Interest) or any applicable law dealing with uncollected goods.

10. DANGEROUS GOODS

- 10.1. Before we accept the Goods, the Customer must fully and accurately disclose to us in writing if any of the Goods are, or contain, explosive, flammable, corrosive, poisonous, radioactive, environmentally hazardous or otherwise dangerous goods (**Dangerous Goods**), and must comply with all laws relating to the packaging, labelling, documentation and carriage of Dangerous Goods (including the Australian Dangerous Goods Code).
- 10.2. We may charge additional amounts for accepting and handling Dangerous Goods that are properly disclosed to us in accordance with clause 10.1, and may decline to accept any Dangerous Goods.
- 10.3. If Dangerous Goods are not disclosed as required by clause 10.1 and are discovered while in our custody, we may remove, isolate, sell, destroy or otherwise dispose of those Goods without liability or compensation to the Customer, and the Customer indemnifies us in accordance with clause 13 (Indemnity) for all Loss we incur as a result of that non-disclosure.

11. EXCLUSIONS AND LIMITATIONS OF LIABILITY

- 11.1. Nothing in these Conditions excludes, restricts or modifies any condition, warranty, guarantee or right conferred on the Customer, or any obligation or liability imposed on us, under the Australian Consumer Law or any other law, to the extent it cannot lawfully be excluded, restricted or modified (**Non-Excludable Condition**). To the extent we are permitted to limit our liability for a breach of a Non-Excludable Condition, our liability for that breach is limited, at our option, to any one or more of resupplying the Services, or paying the cost of having the Services supplied again.
- 11.2. Subject to clause 11.1 and to the maximum extent permitted by law, we are not liable to the Customer for any Loss arising directly or indirectly out of, or in connection with, the Services (however caused, including by our negligence, breach of contract, breach of statutory duty or wilful default) including (without limitation) Loss arising from or relating to:
 - (a) loss of, damage to, deterioration, contamination or evaporation of the Goods, or misdelivery, delay in delivery or non-delivery of the Goods;
 - (b) the carriage or storage of Dangerous Goods; or
 - (c) any statement, forecast, representation or information given by or on behalf of us about the route, method, timing or procedure for the Services.
- 11.3. "**Loss**" means any loss, liability, cost, expense, damage or claim of any kind, however arising, including consequential loss and loss of profits, revenue, business or goodwill, and whether arising under contract, tort (including negligence), statute or otherwise.
- 11.4. The Customer must, at its own cost, maintain insurance sufficient to cover the full value of the Goods while they are in our care, custody or control. We recommend the Customer confirm the extent of that cover before making a Booking, as we do not accept liability for loss of or damage to the Goods except as expressly stated in these Conditions.
- 11.5. If the Customer wants us to accept liability for the Goods beyond the position in this clause 11, the Customer may ask us, before the Goods are collected, to accept a declared value for the Goods, on payment of an additional charge we notify to the Customer. If we agree in writing, our liability (if any) for loss of or damage to those Goods is limited to the lesser of the declared value and our reasonable cost of resupplying the Services.

12. CLAIMS

- 12.1. The Customer must notify us in writing of any claim for loss of or damage to Goods:
 - (a) for damage apparent on delivery, at the time of delivery, and noted on the delivery documentation; or

- (b) for loss or damage not apparent on delivery, within 2 business days after the date of delivery (or, for non-delivery, within 2 business days after the date the Goods should have been delivered).

- 12.2. Where delivery of the Goods is acknowledged (including electronically through our app or other delivery record) as received in good order and condition (**Proof of Delivery**), that Proof of Delivery is conclusive evidence, as between us and the Customer, that the Goods were in that condition, and in the quantity recorded, at the time of delivery, unless the Customer proves by evidence independent of its own assertion that the Goods were damaged, or the quantity was short, before delivery.
- 12.3. A claim must include reasonable supporting evidence, including a description of the Loss claimed, the relevant Booking or consignment reference, and evidence of the value of the Goods. If we ask, the Customer must make the Goods available for our inspection before disposing of them.
- 12.4. We are not liable for any claim that is not notified to us in accordance with clause 12.1. Any proceedings relating to a claim must be commenced within 12 months after the date of the event giving rise to the claim, failing which the claim is absolutely barred and we are released from all liability in respect of it.

13. INDEMNITY

- 13.1. The Customer indemnifies us, and must keep us indemnified, against all Loss we incur arising out of or in connection with:
 - (a) the Services;
 - (b) the carriage or storage of Dangerous Goods (including any related fine, penalty or clean-up cost);
 - (c) any breach by the Customer of these Conditions, or of any law relating to the Goods;
 - (d) any claim by a Sub-contractor or third party arising out of the Services, including any claim in respect of loss, misdelivery, deterioration, non-delivery, contamination or damage to the Goods, however caused;
 - (e) any failure by the Customer, or a person acting on its behalf, to follow instructions given to a Sub-contractor;
 - (f) any inaccurate, incomplete or misleading information provided by the Customer in or with a Booking, or relating to the marks, numbers, description, quality or condition of the Goods; and
 - (g) loss of or damage to any pallets, containers or other equipment on or in which the Goods are carried or stored.
- 13.2. This clause 13 survives the termination or expiry of these Conditions.

14. CUSTOMER WARRANTIES

- 14.1. The Customer warrants that:
 - (a) it is the owner of the Goods, or has the authority of the owner to accept these Conditions on the owner's behalf, and it accepts these Conditions for itself and on behalf of every person on whose behalf it is acting;
 - (b) it holds insurance in accordance with clause 11.4;
 - (c) it has complied with all laws relating to the Goods, including any laws relating to Dangerous Goods; and
 - (d) it is acquiring the Services for business purposes, and the contract for the Services is not a "consumer contract" for the purposes of the *Competition and Consumer Act 2010* (Cth).

15. COMPLIANCE WITH LAW AND CHAIN OF RESPONSIBILITY

- 15.1. Each party must comply with all applicable laws in connection with the Services, including the Heavy Vehicle National Law and any applicable work health and safety legislation.
- 15.2. The Customer must not request, require or pressure us or our Personnel to do anything that would breach any law relating to driver fatigue, or to vehicle mass, dimension, loading or scheduling (**Chain of Responsibility Laws**), and must ensure the Goods are packaged, loaded and presented in a manner that allows us to comply with the Chain of Responsibility Laws.
- 15.3. The Customer indemnifies us in accordance with clause 13 (Indemnity) against all Loss (including any fine, penalty or infringement notice) we incur as a result of the Customer's breach of this clause 15.
- 15.4. We will handle personal information collected in connection with the Services in accordance with the *Privacy Act 1988* (Cth) and our privacy policy, available on request.

16. FORCE MAJEURE

- 16.1. Neither party is liable for any failure or delay in performing its obligations under these Conditions (other than an obligation to pay money) to the extent that failure or delay is caused by a Force Majeure Event.
- 16.2. Force Majeure Event means any event beyond the reasonable control of the affected party, including industrial action, extreme weather or natural disaster, pandemic or epidemic, fuel shortage, road or port closure, and action by government or another authority, but excludes a failure to pay money and a mechanical or vehicle breakdown.
- 16.3. A party affected by a Force Majeure Event must notify the other party as soon as reasonably practicable, and use reasonable endeavours to minimise the effect of the Force Majeure Event on its obligations. If a Force Majeure Event continues for more than 30 days, either party may terminate the affected Booking, or these Conditions, by written notice to the other.

17. TERM AND TERMINATION

- 17.1. These Conditions apply from the date they are first provided to the Customer until terminated in accordance with this clause 17.
- 17.2. Either party may terminate these Conditions for convenience by giving the other at least 30 days' written notice.
- 17.3. We may terminate these Conditions, or suspend or decline to provide further Services, immediately on written notice if:

- (a) the Customer is in Default and does not remedy the Default within 5 business days after we ask it to;
- (b) the Customer becomes insolvent, or an insolvency event occurs in relation to the Customer; or
- (c) the Customer breaches these Conditions in a way that is not capable of remedy.

17.4. Termination of these Conditions does not affect any right or liability that accrued before termination. clauses 7 (Charges and Payment), 8 (Lien and Security Interest), 9 (Uncollected or Abandoned Goods), 11 (Exclusions and Limitations of Liability), 12 (Claims), 13 (Indemnity), 18 (Restraint), 19 (Dispute Resolution) and 20 (Governing Law and Jurisdiction) survive termination.

18. RESTRAINT

- 18.1. The Customer must not, during the term of these Conditions and for 6 months afterwards, without our prior written consent, employ, engage or solicit any person who is, or was during the preceding 6 months, one of our drivers or other operational Personnel.
- 18.2. The Customer acknowledges that a breach of clause 18.1 will cause us loss that is difficult to quantify, and agrees that \$10,000 per person is a genuine and reasonable pre-estimate of that loss, without prejudice to any other right or remedy available to us.

19. DISPUTE RESOLUTION

- 19.1. If a dispute arises out of or in connection with these Conditions, before commencing court proceedings (other than proceedings seeking urgent injunctive relief, or to recover an undisputed debt) a party must give the other written notice of the dispute, and senior representatives of each party must use reasonable endeavours to resolve the dispute by negotiation within 10 business days after that notice.
- 19.2. If the dispute is not resolved within that period, either party may refer the dispute to mediation administered by a mediator agreed between the parties (or, failing agreement, appointed by the Resolution Institute) before commencing court proceedings.

20. GOVERNING LAW AND JURISDICTION

- 20.1. These Conditions are governed by the laws of Queensland, and each party irrevocably submits to the non-exclusive jurisdiction of the courts of that State and of courts competent to hear appeals from those courts.

21. GENERAL

- 21.1. **Notices:** a notice given under these Conditions must be in writing and is validly given if delivered by hand, sent by pre-paid post, or sent by email, to the recipient's last address or email notified to the other party, and is taken to be received in accordance with the *Electronic Transactions Act 1999* (Cth) or, for a posted notice, 3 business days after posting.
- 21.2. **No waiver:** a failure or delay by either party to exercise a right under these Conditions does not operate as a waiver of that right.
- 21.3. **Severability:** if any provision of these Conditions is illegal or unenforceable, that provision is severed to the extent of the illegality or unenforceability, without affecting the remaining provisions.
- 21.4. **Assignment:** the Customer must not assign or novate its rights or obligations under these Conditions without our prior written consent. We may assign or novate our rights and obligations under these Conditions, including to a Related Body Corporate or in connection with a sale or transfer of all or part of our business, and the Customer consents to any such assignment or novation.
- 21.5. **Entire agreement:** these Conditions, together with each Booking, constitute the entire agreement between the parties in relation to the Services, and supersede all prior negotiations, representations and agreements on that subject matter.
- 21.6. **Electronic acceptance:** a Booking, and acceptance of these Conditions, may be given electronically, including by email or through our online booking portal, and is effective for the purposes of these Conditions.